

Felony Disenfranchisement and the Voting-Eligible Population

Felony disenfranchisement, state by state, and a category that outlives the sentence

84-355 Democracy's Data
August 2026

A man serving a sentence for a felony in Vermont votes. He votes from inside the prison, by absentee ballot, in the town where he lived before he was sentenced. Nobody regards this as remarkable. Vermont has never taken the vote away for a criminal conviction, and neither has Maine.

The same man, convicted of the same offense in Tennessee, does not vote in prison. He does not vote on parole. He does not vote on probation. And on the day his sentence ends he still does not vote, along with the 300,166 people in that state who have finished their sentences in full and remain barred. Tennessee withholds the franchise from 7.68% of its adult citizens. Maine and Vermont withhold it from nobody.

No federal rule governs the difference. Every other boundary of the American electorate has been settled at the national level, by amendment or by statute: age, citizenship, residency. **On criminal conviction nothing has been settled at all**, and the result is fifty answers to the same question.

This chapter counts the people that produces, which turns out to be harder than it sounds, and then asks what the count is a count of.

01 The number is not in any government file

There is no federal register of disenfranchised Americans. Nobody in the government is required to produce one, and nobody does. The figure that appears in litigation, in journalism and in the academic literature exists because a research organization builds it. It is built state by state, out of corrections data and each state's own statutes, and then published the way research organizations publish things.

Item		Value
Who compiles it	The Sentencing Project	
Published as	A PDF research report	
Unit	State	
Coverage	All 50 states	
Machine-readable version	None	

The last row is the one that matters here. To use these numbers at all, the build script here extracts text from the report and parses fixed-width columns by character position. There is no API, no CSV, no supplementary file.

That is worth naming plainly, because it recurs across almost every subject this course touches: **public is not the same as usable**. This number is authoritative, it is cited in federal litigation, and it cannot be downloaded as data.

Parsing columns by character position is also fragile in a specific and dangerous way. A state whose name runs long, or a figure wide enough to touch its neighbor, corrupts a row silently — no error, no warning, just a wrong number that looks exactly like a right one. So the build checks itself against a property the report guarantees: the five categories are mutually exclusive and must add to the state total.

Check	Result
The test	prison + parole + probation + jail + post-sentence = total
States summing exactly	43
States off by exactly 1 person	7
States off by more than 1	0
Largest discrepancy anywhere	1

43 states sum exactly, 7 are off by a single person, and none is off by more than that. Both halves of that result say something. **The off-by-one states are rounding in the published report**, not a parsing failure: the report's own components do not quite add to its own totals, which is what happens when independently rounded estimates are summed. A discrepancy of one person in 479,097 is not a data problem.

And the check earned its place. An early version of this parse put a column boundary two characters too far right and split Texas's figures across two fields, which produced discrepancies in the tens of thousands. A total that adds up is weak evidence that a parse worked; a total off by five orders of magnitude more is proof that it did not.

02 What a number nobody collects is made of

The parse can be right and the numbers still be estimates, and here they are. *Locked Out* is a series that four criminologists have maintained since the late 1990s, and each edition is built the same way. It takes correctional populations from the federal statistical series, and reads them against what each state's law says about who in those populations may vote.

For the people currently under supervision, that is close to bookkeeping. A state knows how many are in its prisons. For the largest of the five categories it is not bookkeeping at all. **No agency anywhere maintains a list of people who finished a sentence and are still barred.**

That population has to be built up out of decades of past convictions, then reduced by everything that takes somebody out of it. Deaths. Reconvictions that put a person back in a category already counted. Moves across state lines into states that would have re-stored them. Each of those is a modeled adjustment, and none of them is observable in

the way a prison roll is. 1,616,437 is the report's best estimate of an unobserved quantity, not a tally.

That is the right evidence anyway, and for a reason worth stating exactly. It is not the only estimate one could build. It is the estimate that operates.

Courts cite it, journalists quote it, and legislatures argue about it. A chapter asking what the American electorate excludes is better served by the number the argument actually runs on than by a cleaner one nobody uses. The alternative that would be better is not a different research group.

It would be a federal register that does not exist, or fifty state agencies publishing who they currently bar, which none of them does. Every year this series continues is a year in which a private organization is doing a job no one has assigned to anybody.

Two things about the file's shape follow from its being a table in a report rather than a data product. It covers 50 states and stops there: the District of Columbia is not in Table 2, so it is not here, and no amount of care in the parse will produce it. And the denominator these rates use, the bottom number each one is divided by, is printed in the same table. So nothing in this chapter is a fraction assembled from two unrelated files. That is a virtue, and it is also why swapping in a denominator of your own means leaving the report's arithmetic behind. A later section takes up what that denominator actually means.

A third thing follows, and it is the price of getting data this way. The parse is pinned to a single printing. Those column boundaries were measured against the 2024 report, and *Locked Out* is a series. The next edition will be a new PDF at a new address, typeset again from scratch, and nothing obliges its columns to land where these ones do. What was acquired here is therefore not the numbers but one particular setting of them in type, and keeping this chapter current is not a matter of re-running the script. It is a matter of doing the work again.

03 A page of a report, and the file it had to be turned into

Everything above says the source is a PDF. Here is the PDF: Table 2 exactly as the converter renders it, with no character added, removed or straightened. This section is what stands between that and `states.csv`.

The left half of the table first: the caption, the two lines of heading, and six of the fifty-one rows. Characters 1 to 63 of each line, unaltered.

Table 2. Estimates of Disenfranchised Americans with Felony Con

State	Prison	Parole	Fel. Prob.	Jail	P
Alabama	19,816	5,550	19,651	1,364	
California	97,608				
Maine					
Texas	139,631	100,600	226,472	12,395	
Tennessee	23,735	12,630	55,673	7,480	
Total	1,034,995	286,168	993,725	118,653	1

And the right half — characters 64 to 113 of the same lines, which is where the report puts the totals and the rate:

victions, 2024

ost. Sent.	Total	Voting Eligible	% Disf.
		Population	
181,056	227,437	3,824,042	5.95
	97,608	26,078,138	0.37
	0	1,095,863	0.00
	479,097	19,161,407	2.50
300,166	399,684	5,206,668	7.68
,616,437	4,049,978	237,630,249	1.70

Three things about that block are the whole problem.

There is no header row. The column heading reads “Voting Eligible” on one line and “Population” on the next, because that is how it was typeset to fit the page. Nothing a program can read says which column is which. The eight field names in `states.csv` were typed in by a person looking at this page.

There are no separators. The gap between 19,816 and 5,550 is spaces — the same character as the gap inside the heading, the same character as the gap after Alabama. What tells the numbers apart is *where on the line they sit*.

And the empty cells are not damage. Look at California: one number, then nothing until the total. Look at Maine: nothing at all, and a total of 0. Those blanks are the report saying that the category does not exist in that state’s law.

State	Prison	Parole	Probation	Jail	Post-sentence	Total	% disf.
Alabama	19,816	5,550	19,651	1,364	181,056	227,437	5.95
California	97,608	0	0	0	0	97,608	0.37
Maine	0	0	0	0	0	0	0.00
Texas	139,631	100,600	226,472	12,395	0	479,097	2.50
Tennessee	23,735	12,630	55,673	7,480	300,166	399,684	7.68

Six decisions turned the first block into the second, and the first of them is the one nobody would guess.

The columns were cut at measured positions, not obvious ones. The heading suggests a boundary between prison and parole around character 30. Texas reports 139,631 in prison and 100,600 on parole, and those two numbers are wide enough that a cut at 30 slices the first one in half. The build cuts at 28 instead. That single character is the difference between a file that is right and a file in which one large state is quietly wrong:

Prison ends at character	States whose categories add to their total	States that do not
28	50	0
30	49	1

A blank became a zero, and that is a claim rather than a convenience. A blank cell is read as 0. It could as easily have been read as missing, and the two are not the same statement. 0 says California disenfranchises nobody on parole. Missing would say the report does not tell us.

Here 0 is right, and the report's own text says so. But **the rule was applied to 100 empty cells at once**, and nothing in the table tells apart a category a state does not have from a number that was left out. The post-sentence column alone is blank in 40 of the 50 states.

Commas came out. 139,631 is text. 139631 is a number. Nothing else about that step is interesting, and it is the step that most often silently produces NA.

The Total row was routed somewhere else, and read a different way. The last line of the table is the country, not a state, so it goes to `national.csv` instead. It is also read by splitting on spaces rather than by column position, because the word `Total` is short enough that the numbers after it do not land where a state's numbers land. **One table, two parsers**, which is what a table typeset for human eyes costs.

The rate was taken, not recomputed. `pct` is the report's printed column, not `total` divided by `voting_eligible_pop`. The two agree: for all 50 states the printed rate matches the quotient to within 0.005 of a percentage point, which is rounding. Taking the printed one keeps the chapter arguing with the report rather than with itself.

Then the parse was made to prove itself. Nothing here is trusted. The build refuses to write a file unless every state's five categories add to its printed total — the check run above, on the captured lines, in both positions. That is the only defence available. **A mis-read column produces numbers that look completely ordinary**, and the sum is the one thing the report prints twice.

04 Five categories, and only two of them involve a cell

State	Prison	Jail	Parole	Probation	Post-sentence	Total	% of adult citizens
Tennessee	23,735	7,480	12,630	55,673	300,166	399,684	7.68
Florida	84,678	10,007	3,890	133,324	729,858	961,757	6.13
Pennsylvania	37,910	3,372	0	0	0	41,282	0.41

One row is a state, divided into five mutually exclusive groups of people who cannot vote because of a conviction. The argument of this chapter lives entirely in the distinction between them.

- **Prison** and **jail** are people currently incarcerated.
- **Parole** and **probation** are people under supervision, living in the community, working, paying taxes, raising children.
- **Post-sentence** are people who have **finished the sentence entirely** and are still barred.

Quantity	Value
Total disenfranchised	4,049,978

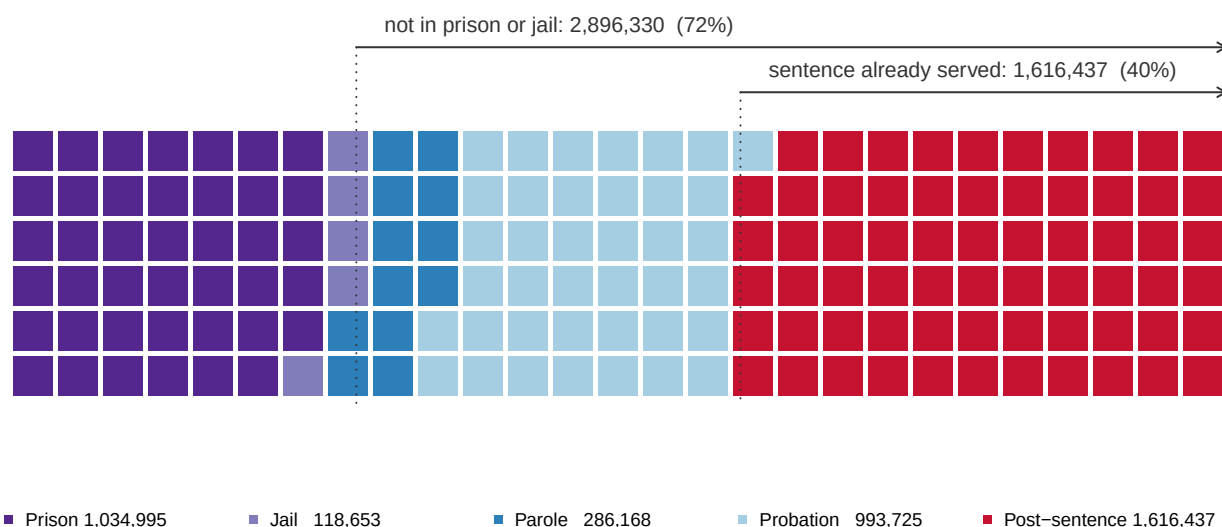
Quantity	Value
Voting-eligible population	237,630,249
Share of adult citizens	1.7%
Currently incarcerated	1,153,648 (28.5%)
Not incarcerated	2,896,330 (71.5%)

About 4,049,978 American adult citizens, 1.7% of the total, cannot vote because of a felony conviction. And the first thing the breakdown says is that the intuitive picture is wrong: **71.5% of them are not in prison or jail**. Nearly three quarters of the disenfranchised population is living in the community. Anyone who thinks of this as a consequence of incarceration is describing a quarter of the phenomenon.

05 The largest category is the one that is already over

Category	People	Share	Incarcerated	Sentence complete
Prison	1,034,995	25.6	yes	no
Jail	118,653	2.9	yes	no
Parole	286,168	7.1	no	no
Probation	993,725	24.5	no	no
Post-sentence	1,616,437	39.9	no	yes

1,616,437 people, 39.9% of the total, have completed their sentences in full and still cannot vote. It is the single largest category, larger than prison and jail put together. Figure 1 draws the whole disenfranchised population one square at a time so that the two cut points can be seen against each other.



One square is 25,000 people; 162 squares are 4,049,978. Squares fill down each column, then rightward.

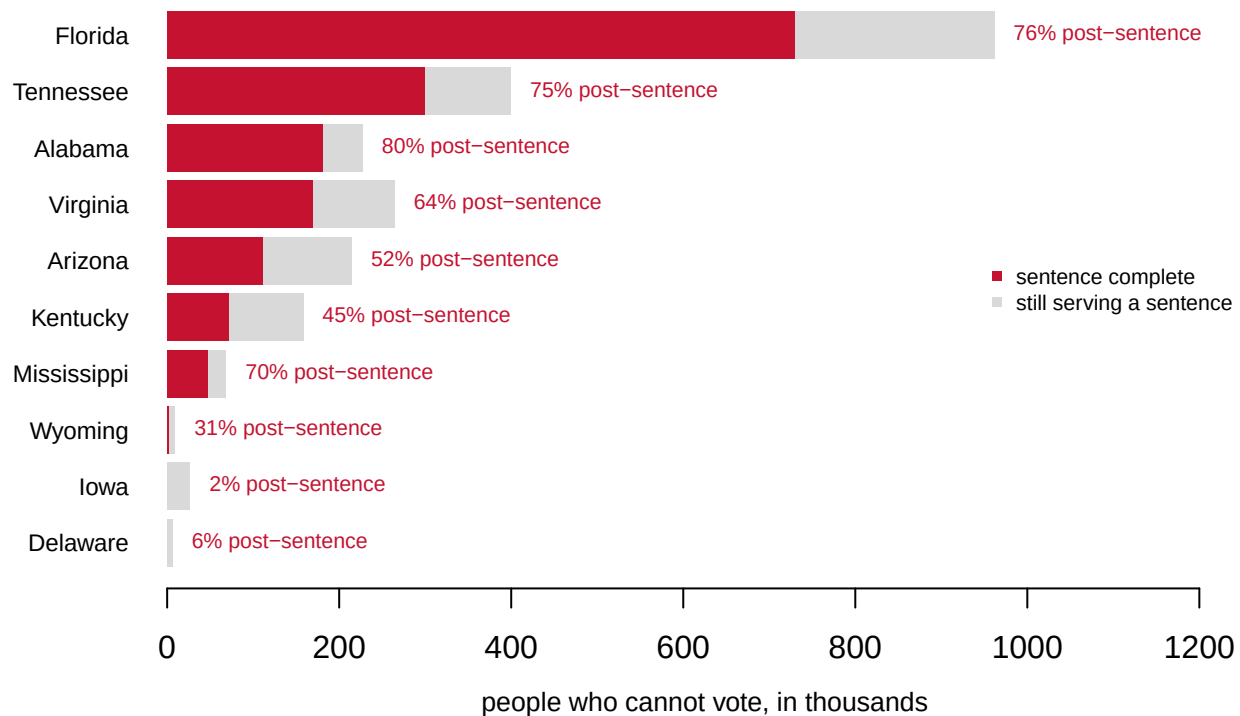
Figure 1. The disenfranchised population of the United States, one square per 25,000 people. 162 squares are 4,049,978 people, colored by the five mutually exclusive categories the source reports. The first dotted line marks the end of incarceration: everything to its right, 2,896,330 people or 72% of the whole, is living in the community. The second marks the end of punishment: everything to its right, 1,616,437 people or 40%, has completed a sentence in full.

06 Forty states have none of it

The post-sentence category is not a national policy operating everywhere at modest scale. It is a small number of states operating at very large scale.

State	Post-sentence	State total	% of state's total
Florida	729,858	961,757	75.9
Tennessee	300,166	399,684	75.1
Alabama	181,056	227,437	79.6
Virginia	169,573	264,292	64.2
Arizona	112,109	214,791	52.2
Kentucky	71,829	158,381	45.4
Mississippi	47,932	68,731	69.7
Wyoming	2,907	9,437	30.8
Iowa	651	26,878	2.4
Delaware	357	6,214	5.7

10 states account for the entire post-sentence category. The other 40 have none of it whatsoever. And inside those ten it is not a fringe: in Florida 76% of everyone disenfranchised has already finished their sentence, in Tennessee 75%, in Alabama 80%. These are not people being punished. The punishment is over. They are people for whom a completed sentence carries a permanent civic consequence that no judge imposed and no date ends.



The 10 states that have a post-sentence category at all. Between them they hold 100% of it; the other 40 states have none.

Figure 2. The 10 states that have a post-sentence category at all. Each bar is a state's disenfranchised population; the red portion has completed its sentence. Between them these states hold 100% of the national post-sentence category, and the other 40 states hold none. Florida alone accounts for 729,858 people, 45% of the national figure.

07 The same conviction, fifty answers

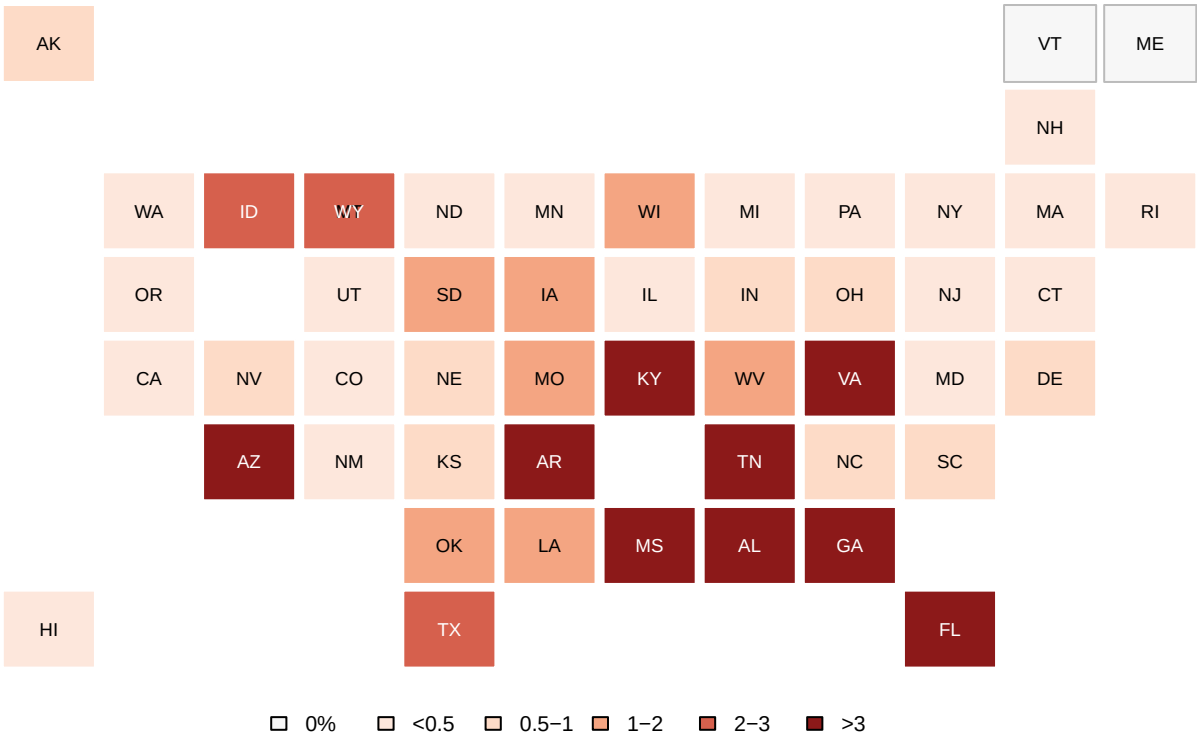
Each state decides for itself whether a felony conviction costs a vote, and for how long. Nothing in federal law requires the answers to agree, and nothing about crime rates requires them to be close.

Before you read on, commit to a number. Across the 50 states in this file, the average among those that disenfranchise anyone at all is 1.53% of adult citizens. **How many times that average is the single highest state?** Write down a multiple. Then write down how many states you think bar nobody at all.

State	Disenfranchised	% of adult citizens
Tennessee	399,684	7.68
Florida	961,757	6.13
Alabama	227,437	5.95
Kentucky	158,381	4.66
Arizona	214,791	4.20
Virginia	264,292	4.18

State	Disenfranchised	% of adult citizens
Maine	0	0.00
Vermont	0	0.00
Massachusetts	7,360	0.14
Rhode Island	1,595	0.19

Most readers write down two or three times the average. Tennessee disenfranchises 7.68% of its adult citizens, 5.0 times the average of the states that bar anyone at all; and 2 states disenfranchise nobody. That is not a difference of degree that a national average would smooth over. **The same conviction produces the loss of a vote in a federal election in one state and not in the one next door**, and Figure 3 shows how the country divides.



Share of adult citizens barred by a felony conviction. The 2 white tiles are the states at exactly zero: Maine and Vermont.

Figure 3. Share of adult citizens barred by a felony conviction, by state. One tile per state in a rough geographic layout, shaded in six classes with zero as its own class. The dark tiles are the South plus Arizona; the 2 white tiles are the states at exactly zero, Maine and Vermont. Tennessee is the darkest at 7.68%, 5.0 times the average among states that bar anyone at all.

Finding	Value
Disenfranchised Americans	4,049,978
Share of adult citizens	1.7%

Finding	Value
Share not incarcerated	71.5%
Share who have completed their sentence	39.9%
States accounting for the entire post-sentence category	10
Highest state rate	Tennessee, 7.68%
States disenfranchising nobody	Maine and Vermont

08 Which population, exactly

Every percentage above divides by a **voting-eligible population**, and that denominator is itself an estimate rather than a count. It means adult citizens, which requires knowing who is a citizen, which requires a survey.

Quantity	Value
National voting-eligible population used here	237,630,249
Where it comes from	Estimated adult citizen population
Is the disenfranchised count subtracted from it?	No

The distinction changes what the numbers mean. 7.68% in Tennessee means “this share of adult citizens is barred,” not “this share of the electorate has been removed from it.” Both quantities are defensible, they are not the same number, and a document that did not say which one it used would be unreadable.

The point generalizes well beyond this chapter, which is why it is worth laboring. **Turnout is a fraction, and disenfranchisement changes its denominator.** Comparing a state that bars 7.68% of its adult citizens with one that bars none is comparing two different electorates, and any quantity computed “per eligible voter” inherits that difference silently, without anybody choosing it.

More directly still: representation is apportioned by *population*, and prisoners are counted where they are held. **A disenfranchised person is counted for apportionment and excluded from the electorate** — represented without a vote, which is a specific and very old constitutional problem rather than a modern accident. The effect is also not distributed evenly across the country's residents. Because felony conviction rates differ sharply by race, felony disenfranchisement removes Black adults from the electorate at several times the overall rate, a fact this file cannot show and the literature has documented repeatedly. **Uggen and Manza (2002)**, the paper that established this as a field, went further and estimated the electoral consequences directly, finding them large enough to have mattered in specific statewide races.

09 The argument is about the last category

The disagreement in American politics is not really about voting from prison, where most people's intuitions are stable in one direction or the other and few minds move. It is about the 39.9% in Figure 1's rightmost block.

The case for restoration is that the sentence *is* the punishment. Once it has been served, continuing exclusion is a penalty imposed by no judge, carrying no end date and no demonstrated relationship to public safety. The case against rests on the vote as a trust rather than a right. On that view a serious breach of the social contract can justify a lasting change in civic status, and restoration is properly a matter of discretion rather than automatic.

The politics have moved, unevenly, and Florida is the instructive case. Amendment 4 passed in 2018 with about 65% of the vote, restoring rights to most people who had completed their sentences. The legislature then required outstanding fines and fees to be paid first. **Florida has no reliable central record of what any given person owes**, so a large number of affected people cannot establish whether they are eligible to register. Registering when ineligible is itself a crime. Florida remains the largest post-sentence population in this file, at 729,858 people.

That is a data problem producing a rights problem, which is as direct an illustration of this course's premise as the country has to offer.

10 What this evidence will bear

The strengths of this file are real and worth stating before the limits. It covers all fifty states on one definition, and its categories do not overlap and add to their totals. The extraction was checked rather than trusted. And it is the source that courts and scholars actually use.

The limits bound different claims. It is **a single organization's estimate**, because no government produces the count. So there is no independent figure to check it against. The sum test in the opening pages gives confidence in the parse, and none at all in the underlying numbers.

It carries **no demographics**: no race, no age, no sex. So the racial disparity that motivates most of the literature cannot be computed from it, only cited. It is **one point in time**, which is a serious limitation for a subject whose law changes every legislative session. Its **jail counts are the softest figures in it**, because jail populations turn over rapidly and eligibility while in jail varies by state and by charge. And **state law here is summarized rather than reproduced**: several states attach conditions that no single category can express, and the file flattens them.

Three questions stay open. How many of these people would actually vote is unknown and probably smaller than the raw counts suggest, since registration and turnout among restored populations run low, which cuts against the simplest electoral-effect claims. Whether outstanding fines and fees are a permissible condition on restoration is being litigated now. And whether the count is *right* has no answer, because nobody audits it, because nobody else produces one.

What the file does establish is narrow and hard to argue with. Roughly four million adult citizens cannot vote because of a felony conviction. Nearly three quarters of them are

not in prison, and two fifths have finished their sentences in full. 10 states account for that last group entirely, while Maine and Vermont remove nobody from the electorate at all. Those states face the same criminal justice system as the rest of the country. **The variation is a policy choice, not a crime rate**, and the four million people it produces are counted for representation in Congress while being absent from every electorate that chooses it.

11 Sources

Data

- The Sentencing Project, *Locked Out: Estimates of People Denied Voting Rights Due to a Felony Conviction*. <https://www.sentencingproject.org/> — the state table in the published PDF report. Download it from that address; the state table is extracted from it, the sum check quoted above applied, and the three files every number in this chapter is computed from.

The data itself

Every figure above is drawn from these tables. They are plain CSV, they open in a spreadsheet, and they are yours to take further.

`grid.csv`, `national.csv`, `states.csv`

Your turn

None of these is answered above, and every one can be answered from the tables you just opened.

- `states.csv` breaks the total into prison, parole, probation, jail and post-sentence. Sort by `post_sentence`. Which states disenfranchise most of their people after the sentence is finished?
- `states.csv` gives each state a pct of its voting-eligible population. Find the highest and lowest. Then look up whether those states' laws differ, or their prison populations do.
- `national.csv` has the same five categories nationally. Work out what share of the total is people not currently incarcerated. Does the phrase 'felon voting' describe them?
- Nobody collects this number directly; it is assembled. Pick a state and list what would have to be counted, by whom, for its row to be right.

Academic literature

- Uggen, C. and Manza, J. (2002). "Democratic Contraction? Political Consequences of Felon Disenfranchisement in the United States." *American Sociological Review* 67(6): 777-803.

REBUILD THIS DATA YOURSELF, WITH AN AI ASSISTANT

I want to rebuild a public dataset from its original source, without any starting files. Please do the following and show your work.

THE SOURCE. The Sentencing Project, "Locked Out 2024: Four Million

Denied Voting Rights Due to a Felony Conviction”, by Uggen, Larson, Shannon and Stewart, October 2024. It is a PDF report, not a dataset:

<https://www.sentencingproject.org/app/uploads/2024/10/Locked-Out-2024-Four-Million-Denied-Voting-Rights-Due-to-a-Felony-Conviction.pdf>

The state-by-state numbers exist only as Table 2, on page 18. One row is a state: people disenfranchised while in prison, on parole, on probation, in jail, and after completing their sentence, plus the total, the voting-eligible population, and the rate. The District of Columbia is not in the table. No account or key is needed.

HOW TO FETCH IT. The download is plain, but the extraction is not.

Use poppler’s pdftotext with its layout option so the table’s columns keep their positions, then read the columns by position, not by pattern. Blank cells carry meaning – California disenfranchises only people in prison, Maine and Vermont nobody at all – so a pattern that expects a number in every column silently drops exactly the most interesting states. Check every row you parse: the five category columns must sum to the total.

WHAT TO BUILD.

1. One row per state with the five category counts, the total, the voting-eligible population, and the rate, plus one national line.
2. The sum check above, reported for all fifty states.

CHECK YOUR WORK. The copy this book used was fetched in August 2026.

If your rebuild matches it, you should find:

- 4,049,978 people disenfranchised nationally – 1.70 percent of a voting-eligible population of 237,630,249
- 1,616,437 of them have completed their sentences entirely
- Tennessee has the highest rate, 7.68 percent, from a total of 399,684; Maine and Vermont are exactly zero
- all fifty state rows pass the sum check

The report is revised roughly every two years; a later edition changes every state’s numbers because the estimates were redone, not because you made an error.